Procurement Services

PROCUREMENT #: PRC005313

NEGOTIATED REQUEST FOR PROPOSAL FOR:

Online Submission Management Software

CLOSING DATE: Friday, March 6, 2026
CLOSING TIME: 2:00:00 PM LOCAL TIME

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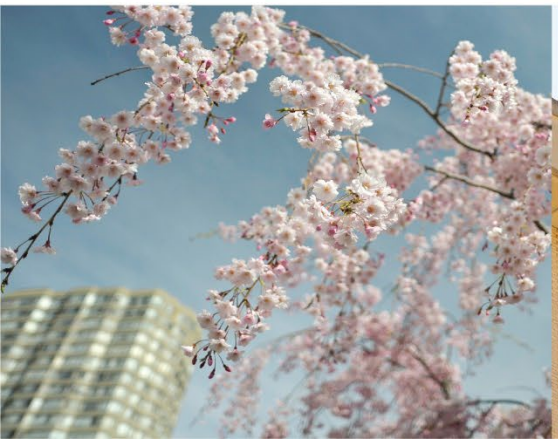
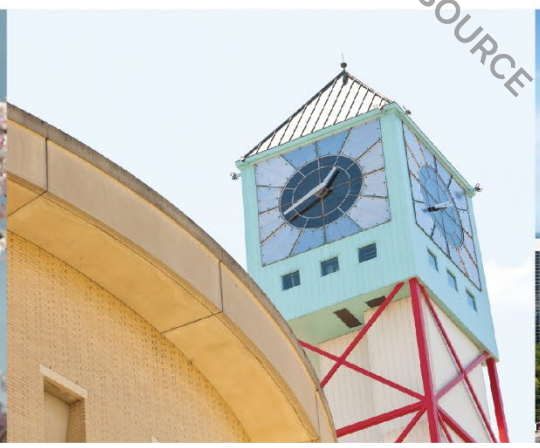
ELECTRONIC BIDS ONLY – LATE BIDS WILL NOT BE ACCEPTED

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PART 1 – INVITATION AND SUBMISSION INSTRUCTIONS

1.0 INVITATION TO BIDDERS

This Negotiated Request for Proposal (the "NRFP") is an invitation by the Corporation of the City of Mississauga (the "City") to prospective bidders to submit bids for Online Submission Management Software, as further described in Section 1.0 of the NRFP Particulars (Appendix A) (the "Deliverables").

Each bidder shall examine the surroundings and adjacent public and private properties for existing conditions including, but not limited to, the rights and interests of other parties that may be interfered with during completion of the contract. No bidder shall claim, at any time after the Closing Date & Time that there was any misunderstanding about the terms and conditions of the contract relating to site conditions. No adjustment to the schedule or to the contract will be made for difficulties encountered during completion of the contract due to conditions, features and peculiarities of the site that were evident at the time of the Closing Date & Time.

2.0 NRFP CONTACT

For the purposes of this procurement process, the "NRFP Contact" will be:

Christina Barszczyk, Procurement Specialist

christina.barszczyk@mississauga.ca

Bidders should only contact the NRFP Contact where specifically instructed to in this NRFP. All other communication in relation to this NRFP must be through the City's e-bidding system.

Bidders and their representatives are not permitted to contact any employees, officers, agents, elected or appointed officials, or other representatives of the City, other than in accordance with this section. Failure to adhere to this rule may result in the disqualification of the bidder and the rejection of the bidder's bid.

3.0 TYPE OF CONTRACT FOR DELIVERABLES

The selected bidder will be requested to enter into direct contract negotiations to finalize an agreement with the City for the provision of the Deliverables. The terms and conditions found in the Form of Agreement (Appendix B) are to form the basis for commencing negotiations between the City and the selected bidder. It is the City's intention to enter into an agreement with only one (1) legal entity.

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4.0 NRFP TIMETABLE

4.1 Key Dates

The NRFP Timetable is tentative only, and may be changed by the City at any time:

Deadline for Questions	February 27, 2026
Deadline for Issuing Addenda	March 6, 2026
Closing Date & Time	March 13, 2026 2:00:00 PM local time
Rectification Period	Two (2) business days* *business days are the days on which the administrative offices of the City are open
Anticipated Ranking of Bidders	May 1, 2026
Anticipated Contract Negotiation Period	60 calendar days
Anticipated Execution of Agreement	July 1, 2026

5.0 SITE VISIT / PRE-BID MEETING, IF APPLICABLE

Is a Site Meeting required: ☐ YES ☒ NO

All bidders must sign in on the official meeting attendance sheet provided by the NRFP Contact.

A representative attending the meeting on behalf of a bidder must indicate the bidder's name on the sign in sheet.

Any new information or changes provided at the site meeting will be summarized and circulated electronically to all attendees after the meeting, via addenda.

Is this Site Meeting mandatory: ☐ YES ☒ NO

If mandatory, bidders who have not signed in prior to the commencement of the meeting will be considered late. Lateness, at the sole discretion of the NRFP Contact, and/or failure to attend a mandatory meeting shall result in bid disqualification and/or rejection.

Site Meeting Location: N/A
Site Meeting Date: N/A
Site Meeting Time: N/A
Site Meeting Instructions, if any: N/A

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6.0 E-SUBMISSIONS

The City will ONLY accept bids uploaded electronically to the City's e-bidding system. Bidders who require accommodations due to a disability should contact Procurement Services at 905-615-3200, extension 5233 or by email at: purchasing@mississauga.ca

Bids submitted and/or received by any other method shall be rejected.

To ensure receipt of the latest information (and updates via email) regarding this bid request, or if a bidder has obtained the NRFP from a third party, the onus is on the bidder to create a e-bidding system vendor account and register as a 'Plan Taker' for this NRFP at the at Bids and Tenders - Mississauga.

Bidders are cautioned that the timing of their submission is based on when the bid is received by the e-bidding system, not when a bid is submitted by a bidder, as transmission can be delayed due to file transfer size, transmission speed or other technical factors.

For the above reasons, the City recommends that bidders allow sufficient time to upload their bid and attachment(s) (if applicable) and to resolve any issues that may arise. The Closing Date and Time shall be determined by the City's e-bidding system web clock.

Bidders should contact technical support at bids&tenders™ via telephone at 1-800-594-4798, or email to support@bidsandtenders.ca at least twenty-four hours prior to deadline if they encounter any problems. The e-bidding system will send a confirmation email to the bidder advising when the bid was submitted successfully. If you do not receive a confirmation email, contact technical support immediately at bids&tenders™ via telephone at 1-800-594-4798, or email to support@bidsandtenders.ca.

All bids are subject to the terms and conditions of this NRFP and by submitting a bid, bidders agree to the terms and conditions herein.

7.0 SUBMITTING A QUESTION

Bidders are responsible for seeking clarification on any matter that they consider unclear before submitting a bid. The City is not responsible for any misunderstanding of this NRFP on the part of the bidder.

Bidders may submit questions through the City's e-bidding system using the "Submit a Question" link associated with the NRFP prior to the deadline for questions.

If any bidder requires an accommodation due to a disability, requests should be directed to purchasing@mississauga.ca

The City shall not be responsible for responding to questions that are posed by any other method.

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PART 2 – EVALUATION AND AWARD

1.0 STAGES OF EVALUATION AND NEGOTIATION

The City will conduct the evaluation of bids and negotiations in the following stages and in accordance with applicable City policy, including the Policy on Bid Review and Evaluation – High Value and Medium Acquisitions (03-06-02):

1.1 Stage I – Mandatory Submission Requirements

Stage I will consist of a review to determine which bids comply with all of the mandatory submission requirements. If a bid fails to satisfy all of the mandatory submission requirements, the City may issue the bidder a rectification notice identifying the deficiencies and providing the bidder an opportunity to rectify the deficiencies. If the bidder fails to satisfy the mandatory submission requirements within the Rectification Period, its bid will be rejected. The rectification period will begin to run from the date and time that the City issues a rectification notice to the bidder. The mandatory submission requirements are set out in Section 3.0 of the NRFP Particulars (Appendix A).

1.2 Stage II – Evaluation

Stage II will consist of the following two sub-stages:

1.2.1 Mandatory Technical Requirements

The City will review the bids to determine whether the mandatory technical requirements as set out in the Section 4.0 of the NRFP Particulars (Appendix A) have been met.

Questions or queries on the part of the City as to whether a bid has met the mandatory technical requirements will be subject to the verification and clarification process set out in Part 3.

Only those bids meeting the mandatory technical requirements will have their bids evaluated in accordance with the Rated Criteria. Bids that fail to satisfy the mandatory technical requirements will be rejected.

1.2.2 Rated Criteria

Bids satisfying both the mandatory submission requirements and the mandatory technical requirements will be evaluated on the basis of the non-price rated criteria (other than Sustainability Criteria) as set out in the NRFP Particulars (Appendix A).

The evaluation team may interview short-listed bidders. Interviews (if conducted) will serve as the mechanism for further evaluation of the bids of short-listed bidders at an in-depth and more detailed level.

The further detailed evaluation will take into account discussions, presentations and clarifications with/by short-listed bidders and analyses by the City, together with any

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other considerations the City, in its sole discretion, deems necessary to complete its assessment of the short-listed bidders. In responding to questions and providing additional information, a bidder cannot alter their original bid.

Only those bids achieving a minimum score of seventy percent (70%) within the Rated Criteria (other than Sustainability Criteria) will advance to the evaluation of the Sustainability Criteria and have their Sustainability Criteria considered. Bids not achieving the seventy percent (70%) will not have their Sustainability Criteria evaluated and will not have their pricing submission opened and will no longer be considered for award.

1.3 Stage III – Sustainability Criteria

Bids achieving the seventy (70%) within the Rated Criteria above will have their Sustainability Criteria evaluated as set out in the NRFP Particulars (Appendix A).

The evaluation team may interview short-listed bidders. Interviews (if conducted) will serve as the mechanism for further evaluation of the bids of short-listed bidders at an in-depth and more detailed level.

The further detailed evaluation will take into account discussions, presentations and clarifications with/by short-listed bidders and analyses by the City, together with any other considerations the City, in its sole discretion, deems necessary to complete its assessment of the short-listed bidders. In responding to questions and providing additional information, a bidder cannot alter their original bid.

Bids will then proceed to have their pricing submission opened.

1.4 Stage IV - Pricing

Stage IV will consist of an evaluation of the submitted pricing of each compliant bid in accordance with the price evaluation method set out in Part 4 Pricing. The evaluation of price will be undertaken after the evaluation of mandatory requirements, rated criteria and sustainability criteria have been completed.

1.5 Stage V – Ranking and Contract Negotiations

1.5.1 Ranking of Bidders

Each bid will be evaluated solely on its contents. References to the bidder's web page and/or external communication material will not be considered or evaluated as part of the bid.

The evaluation team will come together to form a final score for Rated Criteria for each bidder to determine each bidder's total technical score.

After the completion of Stage IV, all scores from Stage II, Stage III and Stage IV will be added together and bidders will be ranked based on their total scores. The top-ranked bidder will

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receive a written invitation to enter into direct contract negotiations to finalize the agreement with the City.

1.5.2 Contract Negotiation Process

Any negotiations will be subject to the process rules contained in the Terms and Conditions of the NRFP Process and will not constitute a legally binding offer to enter into a contract on the part of the City or the bidder and there will be no legally binding relationship created with any bidder prior to the execution of a written agreement. The terms and conditions found in the Form of Agreement are to form the basis for commencing negotiations between the City and the selected bidder. Negotiations may include requests by the City for supplementary information from the bidder to verify, clarify or supplement the information provided in its bid or to confirm the conclusions reached in the evaluation, and may include requests by the City for improved pricing or performance terms from the bidder.

1.5.3 Time Period for Negotiations

The City intends to conclude negotiations and finalize the agreement with the top-ranked bidder during the Contract Negotiation Period, commencing from the date the City invites the top-ranked bidder to enter negotiations. A bidder invited to enter into direct contract negotiations should therefore be prepared to satisfy the pre-conditions of award listed in the NRFP Particulars (Appendix A), provide requested information in a timely fashion and conduct its negotiations expeditiously.

The Contract Negotiation Period may be extended upon agreement between the City and selected bidder.

1.5.4 Failure to Enter into Agreement

If the pre-conditions of award listed in the NRFP Particulars are not satisfied or if the parties cannot conclude negotiations and finalize the agreement for the Deliverables within the Contract Negotiation Period, the City may discontinue negotiations with the top-ranked bidder and may invite the next-best-ranked bidder to enter into negotiations. This process will continue until an agreement is finalized, until there are no more bidders remaining that are eligible for negotiations or until the City elects to cancel the NRFP process.

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PART 3 – TERMS AND CONDITIONS OF THE NRFP PROCESS

1.0 GENERAL INFORMATION AND INSTRUCTIONS

1.1 Bidders to Follow Instructions

Bidders should structure their bids in accordance with the instructions in this NRFP. Where information is requested in this NRFP, any response made in a bid should reference the applicable section numbers of this NRFP.

1.2 Bids in English

All bids are to be in English only.

1.3 No Incorporation by Reference

The entire content of the bidder's bid should be submitted in a fixed format, and the content of websites or other external documents referred to in the bidder's bid but not attached will not be considered to form part of its bid.

1.4 Past Performance

In the evaluation process, the City may consider the bidder's past performance or conduct on previous contracts with the City or other institutions.

1.5 Information in NRFP Only an Estimate

The City and its advisers make no representation, warranty, or guarantee as to the accuracy of the information contained in this NRFP or issued by way of addenda. Any quantities shown or data contained in this NRFP or provided by way of addenda are estimates only, and are for the sole purpose of indicating to bidders the general scale and scope of the Deliverables. It is the bidder's responsibility to obtain all the information necessary to prepare a bid in response to this NRFP.

1.6 Bidders to Bear Their Own Costs

The bidder will bear all costs associated with or incurred in the preparation and presentation of its bid, including, if applicable, costs incurred for interviews or demonstrations.

1.7 Bids to be Retained by the City

The City will not return the bid or any accompanying documentation submitted by a bidder.

1.8 No Guarantee of Volume of Work or Exclusivity of Contract

The City makes no guarantee of the value or volume of work to be assigned to the successful bidder. The agreement to be negotiated with the selected bidder will not be an exclusive contract for the provision of the described Deliverables. The City may contract with others for goods and services the same as or similar to the Deliverables or may obtain such goods and services internally.

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1.9 No Joint Bids

Joint bids are not permitted. The City will only contract with the named bidder in a bid submission.

1.10 Suspended Suppliers

Bidders cannot be a suspended supplier or propose a subcontract with a suspended supplier, pursuant to the City's Supplier Performance Management and Suspension Policy. Bidders are required to verify that they and their prospective subcontractors are not on the City's suspension list prior to bid submission.

2.0 CITY'S RESERVED RIGHTS

2.1 Disqualification of Bid

The City, without liability, cost or penalty, and in its sole discretion, may disqualify and reject any bid at any stage of the bid request process in any of the following circumstances:

(a) the bid contains incorrect information;
(b) the bid is unbalanced;
(c) the bid is conditional or obscure;
(d) the references submitted by the bidder are deemed unacceptable by the City;
(e) the bidder has engaged in unacceptable bidder practices such as bid-rigging or bribery;
(f) the bid contains false or misleading information or a misrepresentation;
(g) there is evidence that the bidder, its employees, or agents colluded with another bidder or any of its employees or agents in the preparation of the bid;
(h) the bidder fails to co-operate with the City's attempts to seek clarification or verification of information contained in a bid;
(i) the bidder submits a bid that the City determines to be non-compliant with the bid request's requirements;
(j) the bidder reveals a conflict of interest in its bid or a conflict of interest involving the bidder is brought to the attention of the City;
(k) the bidder contacts any City employee (other than the City's NRFP Contact) either directly or indirectly in order to obtain information about the bid request or the bid request process;
(l) the bidder extends, in any manner, to any staff or other representative of the City, directly or indirectly, any type of inappropriate influence, or action, or activity that, in the view of the City, is intended to alter the outcome of the bid request process;
(m) the bidder has not demonstrated, to the City's satisfaction, that it has the ability, capacity and resources to perform the work;
(n) the bidder, at the time of bid submission, is under suspension pursuant to the City's Supplier Performance Management and Suspension Policy; or
(o) the bidder has proposed a subcontract with a suspended supplier, pursuant to the City's Supplier Performance Management and Suspension Policy.

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2.2 Cancellation of Bid Request

The City shall have the right, in its sole discretion, to cancel the bid request, at any time, either before or after the closing time and without any obligation to make any award of contract. If the City elects to cancel the bid request, the City may thereafter, in its sole discretion, take any action including, but not limited to, the following:

(a) proceed with another procurement request including, but not limited to, a single source procurement request, or

(b) do nothing with regard to the work and/or services that are the subject of the bid request, or

(c) take any other action or approach in respect of the work and/or services that are the subject of the bid request.

The City shall not be obligated to provide reasons for any such cancellation or any subsequent action or inaction.

2.3 Additional Reserved Privileges

The City further reserves the right, in its sole discretion, to:

(a) reject any bid, including the lowest-priced bid;

(b) reject any bid if the City, in its sole discretion, considers the bid price to be so unreasonably low that the work and/or services cannot be performed satisfactorily at the bid price;

(c) request any bidder to provide written clarification of its bid and to submit supplementary written information in relation to the clarification request. The City shall be entitled to incorporate the bidder's response to such request for clarification into the bidder's bid;

(d) waive any informalities, minor irregularities, errors or other anomalies in a bid and/or waive any informalities or irregularities in the City's e-bidding procedures described in the applicable instructions to bidders;

(e) verify any information set out in any bid with the bidder submitting the bid or with any third party, including, but not limited to, third parties the bidder submits as references;

(f) award any resulting contract in whole or in part;

(g) require a bidder to replace any subcontractor named in its bid if the City, in its sole discretion, deems the subcontractor to be unsatisfactory or unsuitable; or

(h) request references satisfactory to the City, demonstrating the bidder's ability to perform the work and, if applicable, that of its subcontractors and/or suppliers. The City will consider the size, scope, nature and complexity of the bidder's contract with each reference provided and its comparability with the City's requirements. The City will have the sole discretion to disqualify one or more of the references provided and/or to permit the bidder an additional opportunity to submit acceptable references. The City will not be required to contact all or any of the references provided or to disclose any information received.

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3.0 COMMUNICATION AFTER ISSUANCE OF NRFP

3.1 Bidders to Review NRFP

Bidders should promptly examine all of the documents comprising this NRFP and may direct questions or seek additional information in writing to the e-bidding system "Submit a Question" function on or before the Deadline for Questions. An on-screen confirmation message will appear in the e-bidding system once the question has been received. No such communications are to be directed to anyone or by any other means than submission through the e-bidding system and the City shall not be responsible for any information provided by or obtained from any source other than the NRFP Contact or the e-bidding system. It is the responsibility of the bidder to seek clarification through the e-bidding system on any matter it considers to be unclear. The City is not responsible for any misunderstanding on the part of the bidder concerning this NRFP or its process.

The submission of a bid shall be deemed proof that the bidder has satisfied itself as to all the provisions of the NRFP, all the conditions which may be encountered, the materials and level of effort required, and any other matter which may affect their ability to perform the contract satisfactorily, should their bid be selected.

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3.2 All New Information to Bidders by Way of Addenda

This NRFP may be amended only by addendum in accordance with this section. If the City, for any reason, determines that it is necessary to provide additional information relating to this NRFP, such information will be communicated to all bidders by addendum. Each addendum forms an integral part of this NRFP and may contain important information, including significant changes to this NRFP. Bidders are responsible for obtaining all addenda issued by the City through the e-bidding system. Bidders will be required to check a box for acceptance of addenda before submitting their bid through the e-bidding system.

No oral interpretation or clarification provided to a bidder will be effective to modify any provisions of the bid request.

Bids that do not contain evidence of receipt of all addenda will be deemed to be "incomplete" and will not be accepted in the e-bidding system.

In the event that an addendum is issued after a bidder has submitted its bid, the e-bidding system will change the status of the bid to "incomplete" and the bidder will be required to acknowledge the addendum and resubmit its bid prior to the bid Closing Date and Time.

3.3 Post-Deadline Addenda and Extension of Submission Deadline

If the City determines that it is necessary to issue an addendum after the deadline for Issuing addenda, the City may extend the Closing Date & Time for a reasonable period of time.

3.4 Verify, Clarify, and Supplement

When evaluating bids, the City may request further information from the bidder or third parties in order to verify, clarify or supplement the information provided in the bidder's bid, including but not limited to clarification with respect to whether a bid meets the mandatory technical requirements set out in the NRFP Particulars (Appendix A). The City may revisit, re-evaluate and rescore the bidder's bid or ranking on the basis of any such information.

4.0 NOTIFICATION AND DEBRIEFING

4.1 Notification to Other Bidders

Once the top-ranked bidder is selected by the City, the other bidders may be notified directly in writing or by public posting of the outcome of the procurement process.

4.2 Debriefing

Bidders may request a debriefing after receipt of a notification of the outcome of the procurement process. All requests must be in writing to the NRFP Contact and must be made within three (3) days of such notification, unless the notification provides otherwise.

4.3 Procurement Bid Awards and Bid Protests Policy

If a bidder wishes to challenge the NRFP process, it should provide written notice to the Manager, Procurement Services in accordance with the City's Bid Awards and Bid Protests Policy.

5.0 CONFLICT OF INTEREST AND PROHIBITED CONDUCT

5.1 Conflict of Interest

For the purposes of this NRFP, the term "Conflict of Interest" includes, but is not limited to, any perceived, potential or actual situation or circumstance where in relation to the NRFP process or contract, the bidder:

(a) has an unfair advantage or engages in conduct, directly or indirectly, that may give it an unfair advantage, including but not limited to (i) having, or having access to, confidential information of the City in the preparation of its bid that is not available to other bidders; (ii) having been involved in the development of the NRFP, including having provided advice or assistance in the development of the NRFP; (iii) receiving advice or assistance in the preparation of its bid from any individual or entity that was involved in the development of the NRFP; (iv) communicating with any person with a view to influencing preferred treatment in the NRFP process (including but not limited to the lobbying of decision makers involved in the NRFP process), or (v) engaging in conduct that compromises, or could be seen to compromise, the integrity of the open and competitive NRFP process or render that process non-competitive or unfair;

(b) in relation to the performance of its contractual obligations under a contract for the Deliverables, the bidder's other commitments, relationships or financial interests (i)

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could, or could be seen to, exercise an improper influence over the objective, unbiased and impartial exercise of its independent judgement, or (ii) could, or could be seen to, compromise, impair or be incompatible with the effective performance of its contractual obligations;

(c) has commitments, relationships or financial interests that:

a. could or could be seen to exercise an improper influence over the objective, unbiased and impartial exercise of the independent judgment by any personnel of the City or its advisors; or

b. could or could be seen to compromise, impair or be incompatible with the effective performance of a bidder's obligations under the final contract if that bidder was determined to be the successful bidder under the NRFP process;

(d) has contractual or other obligations to the City that could or could be seen to have been compromised or otherwise impaired as a result of its participation in the NRFP process or the final contract;

(e) is, or employs, a former employee of the City that has relevant knowledge of the work to be performed under the final contract;

(f) has a relationship with an employee or former employee of the City that works on, or has worked on, the City's NRFP process or the final contract that is:

a. a personal relationship in the form of a spouse, child, brother, sister, parent, mother or father-in-law, son or daughter-in-law, or with another individual person who shares their home; or

b. a financial relationship; or

(g) has a financial interest in more than one bid.

5.2 Disqualification for Conflict of Interest

The City may disqualify a bidder for any conduct, situation, or circumstances, determined by the City, in its sole and absolute discretion, to constitute a Conflict of Interest as defined above.

5.3 Disqualification for Prohibited Conduct

The City may disqualify a bidder, rescind notice of selection, or terminate a contract subsequently entered into if the City determines that the bidder has engaged in any conduct prohibited by this NRFP.

The City may waive any and all Conflicts of Interest. A waiver may be upon such terms and conditions as the City, in its sole and absolute discretion, requires to satisfy itself that the Conflict of Interest has been appropriately managed, mitigated and minimized, including requiring the bidder to put into place such policies, procedures, measures and other safeguards

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as may be required by and be acceptable to the City, in its sole discretion, to manage, mitigate and minimize the impact of such Conflict of Interest.

5.4 Prohibited Bidder Communications

Bidders must not engage in any communications that could constitute a Conflict of Interest and should take note of the Conflict of Interest declaration set out in the e-bidding system.

5.5 Bidder Not to Communicate with Media

Bidders must not at any time directly or indirectly communicate with the media in relation to this NRFP or any agreement entered into pursuant to this NRFP without first obtaining the written permission of the NRFP Contact.

5.6 No Lobbying

Bidders must not, in relation to this NRFP or the evaluation and selection process, engage directly or indirectly in any form of political or other lobbying whatsoever to influence the selection of the successful bidder(s).

5.7 Illegal or Unethical Conduct

Bidders must not engage in any illegal business practices, including activities such as bid-rigging, price-fixing, bribery, fraud, coercion or collusion. Bidders must not engage in any unethical conduct, including lobbying, as described above, or other inappropriate communications; offering gifts to any employees, officers, agents, elected or appointed officials, or other representatives of the City; deceitfulness; submitting bids containing misrepresentations or other misleading or inaccurate information; or any other conduct that compromises or may be seen to compromise the competitive process provided for in this NRFP.

5.8 Past Performance or Past Conduct

The City may prohibit a bidder from participating in a procurement process based on past performance or based on inappropriate conduct in a prior procurement process, including but not limited to the following:

(a) illegal or unethical conduct as described above;

(b) the refusal of the bidder to honour its submitted pricing or other commitments; or

(c) any conduct, situation, or circumstance determined by the City, in its sole and absolute discretion, to have constituted an undisclosed Conflict of Interest.

6.0 CONFIDENTIAL INFORMATION

6.1 Confidential Information of the City

All information provided by or obtained from the City in any form in connection with this NRFP either before or after the issuance of this NRFP:

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(a) is the sole property of the City and must be treated as confidential;

(b) is not to be used for any purpose other than replying to this NRFP and the performance of any subsequent contract for the Deliverables;

(c) must not be disclosed without prior written authorization from the City; and

(d) must be returned by the bidder to the City immediately upon the request of the City.

6.2 Confidential Information of Bidder

A bidder should identify any information in its bid or any accompanying documentation supplied in confidence for which confidentiality is to be maintained by the City. The confidentiality of such information will be maintained by the City, except as otherwise required or permitted by law or by order of a court or tribunal. Bidders are advised that their bids will, as necessary, be disclosed, on a confidential basis, to advisers retained by the City to advise or assist with the NRFP process, including the evaluation of bids. If a bidder has any questions about the collection and use of personal information pursuant to this NRFP, questions are to be submitted to the NRFP Contact.

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7.0 PROCUREMENT PROCESS NON-BINDING

7.1 No Contract A and No Claims

This procurement process is not intended to create and will not create a formal, legally binding e-bidding process and will instead be governed by the law applicable to direct commercial negotiations. For greater certainty and without limitation:

(a) this NRFP will not give rise to any Contract A–based tendering law duties or any other legal obligations arising out of any process contract or collateral contract; and

(b) neither the bidder nor the City will have the right to make any claims (in contract, tort, or otherwise) against the other with respect to the award of a contract, failure to award a contract or failure to honour a bid submitted in response to this NRFP.

7.2 Limit on Liability

(a) Each bidder participating in the procurement process agrees that if the City is found to be liable, in any way whatsoever, for any act or omission of any of them in respect of the procurement process, the total liability of the City, its representatives and agents and the aggregate amount of damages recoverable against the City for any matter relating to or arising from any act or omission by any one or more of them, whether based upon an action or claim in contract, warranty, equity, negligence, intended conduct or otherwise, including any action or claim arising from the acts or omissions, negligent or otherwise, of the City shall be no greater than the bidder's cost of preparing its bids or $10,000, whichever is less.

7.3 No Contract until Execution of Written Agreement

This NRFP process is intended to identify prospective suppliers for the purposes of negotiating potential agreements. No legal relationship or obligation regarding the procurement of any good or service will be created between the bidder and the City by this NRFP process until the successful negotiation and execution of a written agreement for the acquisition of such goods and/or services.

7.4 Non-binding Price Estimates

While the pricing information provided in bids will be non-binding prior to the execution of a written agreement, such information will be assessed during the evaluation of the bids and the ranking of the bidders. Any inaccurate, misleading or incomplete information, including withdrawn or altered pricing, could adversely impact any such evaluation or ranking or the decision of the City to enter into an agreement for the Deliverables.

7.5 Cancellation

The City may cancel or amend the NRFP process without liability at any time.

8.0 GOVERNING LAW AND INTERPRETATION

8.1 General Interpretation

These terms and conditions of the NRFP Process:

(a) are intended to be interpreted broadly and independently (with no particular provision intended to limit the scope of any other provision);

(b) are non-exhaustive and must not be construed as intending to limit the pre-existing rights of the parties to engage in pre-contractual discussions in accordance with the common law governing direct commercial negotiations; and

(c) are to be governed by and construed in accordance with the laws of the province of Ontario and the federal laws of Canada applicable therein.

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8.2 Procurement Policies

The City's procurement processes are governed in accordance with the requirements of the City's Procurement By-law (No. 0013-2022) and the following policies:

- No. 03-06-02 – Bid Review and Evaluation – High Value and Medium Value Acquisitions
- No. 03-06-08 – Bid Awards and Bid Protests
- No. 03-08-04 – Supplier Performance Management and Suspension
- No. 03-06-09 – Sustainable Procurement Policy
- No. 03-06-11 – Bidding Procedures for Publicly Advertised High Value Acquisitions

The policies are available at the City's website.

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PART 4 – PRICING

1.0 INSTRUCTIONS ON HOW TO PROVIDE PRICING

(a) Bidders shall submit their pricing information electronically within the e-bidding system.

(b) Prices should be provided in Canadian funds, inclusive of all applicable duties and taxes except for HST, which should be itemized separately. Where prices are submitted in a currency other than Canadian currency, the prices will be converted to Canadian currency using the average of rates of exchange published by the Bank of Canada on the Closing Date.

(c) Prices quoted by the bidder must be all-inclusive and must include all labour and material costs, all travel and carriage costs, all insurance costs, all costs of delivery, all costs of installation and set-up, including any pre-delivery inspection charges, and all other overhead, including any fees or other charges required by law.

2.0 EVALUATION OF PRICING

(a) Pricing is worth 35.00 points of the total score.

(b) Pricing will be scored based on a relative pricing formula using the prices set out in the pricing form. Each bidder will receive a percentage of the total possible points allocated to price for the particular category it has submitted a proposal for, which will be calculated in accordance with the following formula:

lowest price ÷ bidder's total price x total available points = bidder's pricing points

For example, if the lowest bid price is $120.00, that bidder receives 100% of the possible points (120/120 = 100%), a bidder who bid $150.00 receives 80% of the possible points (120/150 = 80%) and a bidder who bid $240.00 receives 50% of the possible points (120/240 = 50%).

Lowest bid price
---------- x Total available points = Score for bidder with 2nd lowest rate
2nd lowest bid price

Lowest bid price
---------- x Total available points = Score for bidder with 3rd lowest rate
3rd lowest bid price

etc. for each bid

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PART 5 – FORM OF AGREEMENT

The following Form of Agreement, identified by "☒", will form the basis for negotiation between the supplier and the City and once agreed upon shall govern the Deliverables associated with it:

☐ City issued Purchase Order, with City Standard Terms and Conditions, as found in Appendix B

☒ Agreement, as found in Appendix B

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